X PRIVACY LAW | CONFIDENTIAL - ATTORNEY-CLIENT COMMUNICATION

Legal Memorandum

To: ABC Father From: X Privacy Law Re: YouTube collection of your 10-year-old son's information
Date: November 2026. This preliminary analysis reflects authorities reviewed through June 2025; confirm any later legal developments before filing or taking formal action.

Bottom line

If YouTube or Google collected your son's name and home address, or linked his age and gender to an identifier, while the service knew he was under 13, without valid consent from a parent, there is a credible basis to report a possible COPPA violation. But the facts given do not yet establish that YouTube collected the information, that it learned it from the child, or that the required consent was absent. COPPA requires consent from one parent - not both. California law may give you useful access, deletion, and opt-out rights, but it generally does not create a private damages claim just because information was collected improperly.

1. Federal law: COPPA

When it applies. The Children's Online Privacy Protection Act (COPPA), 15 U.S.C. §§ 6501-6506, and the FTC's rule, 16 C.F.R. Part 312, cover operators of websites/apps directed to children under 13, and general-audience services with actual knowledge they are collecting personal information from a child under 13. A general YouTube account is not automatically a COPPA violation; the question is what service/content was used and what Google/YouTube actually knew. The FTC's 2019 action focused on child-directed YouTube channels and Google's use of persistent identifiers for advertising.

What information is covered. A child's first and last name and home/street address are expressly covered. Age and gender are not standalone enumerated categories, but are covered when the operator collects them from the child and combines them with an identifier. COPPA also covers persistent identifiers such as cookies or device IDs in specified circumstances. A key factual question is whether your son, you, or another adult entered the data, and through which screen or account.

Consent and duties. Before covered collection, use, or disclosure, the operator generally must give parents direct notice and obtain verifiable parental consent, subject to narrow exceptions. One parent can provide the consent; the law does not require permission from both. Parents have rights to review the child's information, revoke consent, and request deletion. If an adult entered the details while setting up an account, that alone is not necessarily valid consent; the notice and consent flow must be examined.

Potential violation here. A violation is plausible if YouTube had actual knowledge your son was under 13 (for example, his disclosed age or an account setting), collected his covered information, and lacked valid parental consent. It is less clear if the data came only from an adult, was not linked to the child, or YouTube lacked the required knowledge. Evidence of targeted advertising or onward disclosure could matter, but is not necessary to every COPPA violation.

Recent rule change. FTC amendments to the COPPA Rule took effect June 23, 2025. The compliance deadline was April 22, 2026 and has passed. Among other changes, the amended rule requires separate parental consent for certain third-party disclosures for targeted advertising and strengthens data-retention/security requirements. The post-June 2025 implementation and any later developments should be verified before action.

2. California law and relevant authorities

California Consumer Privacy Act (CCPA/CPRA). If Google/YouTube is acting as a covered business (it likely meets the statutory thresholds), your son is a California consumer and his name, address, age, and gender are personal information when linked to him. You may submit a verifiable request on behalf of a child under 13 to know/access or delete his information; the business may verify your identity and parental authority. You may also ask Google to correct inaccurate data and opt out of sale/sharing, including cross-context behavioral advertising.

The CCPA does not generally require parental consent just to collect a child's information. Its special under-16 rule applies to sale or sharing: for a child under 13, a parent/guardian must affirmatively authorize sale/sharing (Cal. Civ. Code § 1798.120(c)). A business must honor applicable rights requests and provide required privacy notices and purposes. The CCPA's private lawsuit right is narrow - generally limited to certain data breaches involving specified unencrypted/unredacted information, not ordinary unlawful collection. See Cal. Civ. Code §§ 1798.100, 1798.105, 1798.110, 1798.120, 1798.150.

California Online Privacy Protection Act (CalOPPA). Operators of commercial websites/services collecting personally identifiable information from California residents generally must post a conspicuous privacy policy describing categories collected/shared and other specified practices. CalOPPA does not itself require parental consent to collect a child's data. Cal. Bus. & Prof. Code § 22575.

Privacy and tort claims. California's constitutional privacy right and common-law intrusion claim may be considered if evidence shows covert or excessive collection, use, or disclosure. A constitutional claim generally requires a protected privacy interest, a reasonable expectation of privacy, and a serious invasion; intrusion requires an intentional intrusion into private affairs that would be highly offensive. Whether merely collecting account details meets those tests is uncertain. Disclosure to others, sensitive location tracking, or deceptive tracking could strengthen the case; information knowingly supplied to create an account could weaken it. Hill v. NCAA, 7 Cal. 4th 1, 35-37 (1994); Shulman v. Group W Prods., Inc., 18 Cal. 4th 200, 231 (1998).

Relevant enforcement precedent. In 2019, the FTC and New York Attorney General resolved allegations that Google/YouTube collected persistent identifiers from viewers of child-directed channels and used them for targeted advertising without COPPA notice/parental consent. The $170 million resolution included a federal consent order requiring compliance measures. FTC v. Google LLC, No. 1:19-cv-02642 (D.D.C. 2019). This is a significant enforcement precedent, not proof that YouTube collected your son's data or that your facts are identical.

Who can enforce COPPA? COPPA has no private right of action for an individual parent to sue directly. The FTC and state attorneys general can enforce it. State-law claims may be possible on particular facts, but liability, standing, proof of harm, and COPPA's limits on state-law liability must be assessed before filing.

Practical assessment. The strongest immediate path is to document the data flow and use California privacy rights to learn what Google holds. A damages lawsuit is not the first step on the current record. No case cited here decides that collection of these four data items, by itself, automatically violates California law.

3. Recommended options and next steps

1. Preserve evidence before changing settings. Save screenshots, emails, account/profile pages, YouTube/Google privacy notices, age/birthday settings, parental-control/supervision screens, ad-personalization settings, and any evidence showing who entered each item and when. Record the device, account, channel/video, URL, and date. Do not send more of the child's information than necessary.

2. Submit a parent privacy request to Google. Through Google/YouTube's privacy request channel, state that you are the child's father and request: (a) categories and specific personal information collected; (b) source, purposes, retention period, and recipients; (c) whether it was sold/shared or used for personalized advertising; (d) deletion of the child's data and account-linked identifiers, subject to lawful exceptions; and (e) an opt-out of sale/sharing and targeted-advertising use. Ask Google to identify the account, device, and service involved. Keep the request and response, and complete reasonable identity/parental-authority verification.

3. File regulatory complaints if the response or evidence supports it. Submit a COPPA complaint to the FTC and a complaint to the California Attorney General/California Privacy Protection Agency. Include a short timeline, the child's age, screenshots, account details, what consent was (or was not) obtained, and the exact data at issue. Regulators decide whether to investigate; a complaint does not guarantee relief or a personal payment. A California consumer privacy request/complaint is also appropriate if Google fails to honor CCPA rights.

4. Evaluate claims after the records arrive. If evidence shows knowing collection from a child under 13 without verifiable parental consent, counsel can assess a demand for deletion and regulatory referral, and whether California constitutional privacy, intrusion, or other claims fit. California Invasion of Privacy Act theories (Cal. Penal Code §§ 631-632) should be considered only if facts show interception/eavesdropping; web-tracking applications are fact-specific and not a dependable claim on these facts alone. COPPA itself cannot be sued on directly by you.

5. Do not wait if there is ongoing exposure. Pause the child's use of the relevant account or enable a supervised experience after saving evidence. Review Google account and YouTube controls, disable personalized ads where available, and avoid sharing further identifying details until the collection is understood.

Information needed for a firmer opinion

- How did you learn YouTube had the child's name, gender, age, and address? Do you have a notice, screenshot, export, or account record?
- Who entered each item, on what date, and on what Google/YouTube screen? Was the account created by the father, child, or another person?
- Was the child signed in, using a supervised account, watching a child-directed video/channel, or using YouTube without an account?
- Did any parent receive a COPPA notice, click a consent prompt, or approve account creation? Was the information shared with advertisers or another service?

Recommendation

Proceed first with evidence preservation and a formal parent access/deletion request. If Google confirms it knew the user was 10 and cannot show valid parental consent for covered collection, file FTC and California complaints and have counsel assess any state-law claim. On today's limited facts, a COPPA concern is credible, but a legal violation and private damages case are not yet established.

Authorities: 15 U.S.C. §§ 6501-6506; 16 C.F.R. Part 312; Cal. Civ. Code §§ 1798.100, 1798.105, 1798.110, 1798.120(c), 1798.150; Cal. Bus. & Prof. Code § 22575; Cal. Const., art. I, § 1; Cal. Penal Code §§ 631-632.

This memorandum is based only on the facts provided and is not a substitute for reviewing the account records, current notices, and consent flow.